

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING EDUCATION LAWS RELATED TO
5 EXTRACURRICULAR PARTICIPATION; ALLOWING SCHOOL DISTRICTS OR ATHLETIC ORGANIZATIONS
6 TO RESTRICT EXTRACURRICULAR PARTICIPATION OF HOME SCHOOL STUDENTS WHO ARE NOT
7 CITIZENS OF THE UNITED STATES; AMENDING SECTION 20-5-112, MCA; AND PROVIDING AN
8 IMMEDIATE EFFECTIVE DATE."

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10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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12 **Section 1.** Section 20-5-112, MCA, is amended to read:

13 **"20-5-112. Participation in extracurricular activities.** (1) (a) A school district or an athletic
14 association, conference, or organization with authority over interscholastic sports may not prohibit or restrict the
15 ability of a student attending a nonpublic or home school meeting the requirements of 20-5-109 from
16 participating in extracurricular activities at a school in the student's resident school district solely on the
17 student's enrollment at the public school or on the number of hours the student physically attends the public
18 school.

19 (b) Subsection (1)(a) does not apply to a student attending a home school who is not a citizen of
20 the United States.

21 (2) Except as provided in subsections (1) and (3), a student attending a nonpublic or home school
22 who participates in extracurricular activities at a public school is subject to:

23 (a) the same standards for participation as those required of full-time students enrolled in the
24 school;

25 (b) the same rules of any interscholastic organization of which the school of participation is a
26 member.

27 (3) (a) The academic eligibility for extracurricular participation for a student attending a nonpublic
28 school must be attested by the head administrator of the nonpublic school.

1 (b) The academic eligibility for extracurricular participation for a student attending a home school
2 must be attested in writing by the educator providing the student instruction with verification by the school
3 principal. The verification may not include any form of student assessment."

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5 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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